Brazoria County District Court

Cause No. 2023-CV-0028

Marcus Davidson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Marcus Davidson

Date:	April 9, 2024
Location:	Offices of Dunn & Acosta LLP
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Laura Bryant, Dunn & Acosta LLP

Q: Please state your full name for the record.

A: I'd prefer to keep my name out of the transcript for now, since this is a test document. I can answer the other questions.

Q: Fair enough. Where were you on the day of the collision?

A: I was in a parking lot in Pearland, Texas, near the entrance of a grocery store. I had just pulled into a space and was getting out of my vehicle.

Q: Can you describe how the collision happened?

A: Another vehicle was backing out of a space two rows over. I saw it moving, but I thought it was clear. It struck the rear driver's side of my car while I was standing bseide the open door.

Q: Were you hurt at the scene?

A: My neck felt stiff and my lower back ached almost immediately. I didn't think it was serious at first, but by evening the pain had gotten worse.

Q: Did you seek medical treatment?

A: Yes. I went to an urgent care clinic the following morning. They diagnosed a neck strain and a lower back strain, and they told me to rest and take anti-inflammatory medication.

Q: Have you continued treatment since then?

A: I've done physical therapy about twice a week. The therapist works on my neck mobility and my back. I also have a follow-up with my primary care doctor every few weeks.

Q: How has the injury affected your daily life?

A: Simple things are harder. I struggle to lift grocery bags, and I can't sit through a full work shift without shifting positions constantly. I used to play in a recreational volleyball league, and I've had to stop.

Q: Has anyone helped you with household tasks?

A: My partner has tkaen over most of the laundry and vacuuming. My neighbor helped carry things up the stairs a few times when my back was especially bad.

Q: Before this collision, did you have any prior problems with your neck or back?

A: I had some occasional stiffness after long days at my desk, but nothing that required a doctor or kept me from working. It was manageable with stretching.

Q: Have you been able to return to your normal work duties?

A: I went back to work after about two weeks, but on modified duty. I'm still not at full capacity, and I take breaks more often than I used to.

Q: Is there anything else about the collision or your injuries you think is important for this record?

A: Only that I'm still doing therapy and I hope to get back to my regular activities. I'd like the record to reflect that I've tried to follow every treatment recommendation I've been given.